Submission to the Joint Standing Committee on Electoral Matters on the conduct of the 2025 federal election and related matters

7 October 2025

1 Background

I worked as a volunteer for a candidate in the seat of Forrest at pre-poll and on polling day. My comments are based on those experiences and previous experience as a voter of many years.

2 Polling issues

Party initiated applications for postal votes

When political parties or candidates send electors applications for postal votes, it should be mandatory that envelopes for the return of completed applications are addressed to the Australian Electoral Commission; not to representatives of a party or candidate who can then access the elector's personal details for political advantage.

Grounds for pre-poll votes

Schedule 2 of the Commonwealth Electoral Act 1918 sets out limited grounds for making a pre-poll vote. The large increase in pre-poll votes in recent elections, and my experience in casting pre-poll votes, suggest that these limited grounds are not being enforced and that, therefore, many pre-poll votes are cast in contravention of the Act.

The Electoral Act should be amended to allow any voter to cast a pre-poll vote by removing the existing limited grounds.

Pre-poll period

The period for pre-poll voting should be cut to one week.

- One week would provide sufficient opportunity for people who can't attend polling day to cast a vote. If not, they can apply for a postal vote.
- The current period is exhausting for volunteers and favours those candidates who can field the greatest number of volunteers.
- The current period makes it difficult for candidates to plan campaigns as so many people now vote before polling day.

Polling places should be for voting not campaigning

Polling places should be primarily for people to cast their votes as they choose: not for campaigning. The potential for antagonism and conflict at polling places is exacerbated by campaigning by lobby and third party groups: especially those that are not campaigning for a candidate but are campaigning against a candidate. Their derogatory signs and leaflets will almost certainly be regarded as false or misleading by, at least, the targeted candidate's supporters. This promotes hostility and division which should be avoided generally, and particularly at polling places.

Accordingly, the following changes should be made.

- **Limit candidate volunteer numbers at polling places**

Voters should not have to run the gauntlet of multiple volunteers working for the same candidate. The number of volunteers for each candidate should be limited to a maximum of two or three per entrance to the polling place. This would allow for one volunteer on each side of an entrance and perhaps one to back up and co-ordinate. It would also be fairer to candidates with limited resources.

However, with several candidates, there would still be many volunteers.

To reduce the number of volunteers further, a more stringent requirement could be to limit each candidate to one, seated volunteer who could provide information only if approached by a voter. This would prevent volunteers from accosting voters. Allocation of seating could be contentious.

- **Limit the amount and type of political advertising at polling places**
  - The number of political advertising signs at polling places has become excessive and wasteful. Most are thrown out as rubbish after an election.
  - Political advertising signs at polling places should be limited in size and number. Three or four per entrance per candidate is sufficient and there should be no other political signs placed within, say, 100 metres of the entrance.
  - Only advertising signs that are authorised by a candidate's representative should be permitted. Signs authorised by lobby groups or third parties should not be permitted within 100 metres of the polling place.
  - The purpose of the advertising signs should be to make clear to voters which candidate belongs to which party, or is an independent, to facilitate them making an informed vote.
  - Advertising signs and leaflets that are derogatory to particular candidates, or advise voters not to vote for particular candidates, should not be permitted within 100 metres of polling places. It is easy to provide voters at polling places with false or misleading information which may affect the way they vote, but it is impossible for a targeted candidate to respond effectively.
  - Volunteers should only be permitted to hand out voting cards and policy information for the candidate they represent, and should not be permitted to hand out material from lobby groups and third parties.

3 False and misleading authorised election material

This section applies to all election material and advertising that is required, by law, to be authorised.

Given the ease with which false and misleading information and images can now be created and disseminated, and the difficulty in detecting fakes, it should be a criminal offence to authorise election material and advertising which:

- manipulates or distorts images of a candidate, or
- attribute words, actions or specific policies to a candidate without evidence that the attributions are true.

The Australian Electoral Commission should be empowered to require advertisements and materials breaching these requirements to be withdrawn immediately and for the offender to be required to issue corrections of equal prominence and duration.

In the event of a close election result, the use of demonstrably false or misleading advertising/material by a winning candidate against the runner-up should be a matter that can be considered by a Court of Disputed Returns in deciding whether the election should be overturned.

These requirements can only apply to matters of fact and not to matters of opinion.

4 Threats of interference

Restricting what is permissible in authorised materials and advertising is only part of what is necessary.

The rise of the internet, social media and artificial intelligence has made it too easy for anyone, domestic or foreign, to spread false and misleading information and manipulated images. Too often originators use pseudonyms or other devices to conceal their identity. It has reached the stage where it is often impossible to decide if something is real or fake. This is an existential threat to our democracy because it makes it difficult for voters to have properly informed opinions.

I do not have the knowledge to make specific recommendations but action must be taken to curtail the spread of false and misleading information and images, generally, and particularly when it is designed to impact the political process. The government and political parties need to address this matter urgently.

5 Composition of the Parliament

Election system

To maintain trust in democracy, the essential first step is to ensure that the composition of the Parliament reflects the will of the voters and that the five pillars of our electoral system are retained. These are:

- universal suffrage;
- one vote, one value;
- compulsory voting;
- preferential voting; and
- an independent, well resourced, Electoral Commission to administer the electoral system in a fair and impartial way.

Democracy is undermined if these are compromised, as is now so obvious in the United States of America. I make further comments on compulsory and preferential voting below.

Compulsory voting

Compulsory voting is essential for achieving maximum political consensus because it forces major parties to fight for the middle ground of politics and achieves a much higher voter turn-out than non-compulsory voting.

Non-compulsory voting promotes division and hostility by forcing parties to pander to committed voters at the extremes because they are most likely to vote. Too often, and particularly where complex issues are involved, middle ground, non-political people opt out of voting to their subsequent detriment.

Non-compulsory voting also makes it easier to manipulate elections by using false and misleading information to motivate or to discourage voting. The current disastrous situation in the USA has been facilitated by non-compulsory voting. We must avoid this in Australia.

In a democracy, voting is a civic duty.

Preferential voting

The retention of preferential voting is essential. Preferential voting ensures that the elected candidate has the greatest overall support from a majority of voters.

First-past-the-post voting must not be adopted because it cannot guarantee a similar outcome unless there are only two candidates. With more than two candidates, first-past-the post voting can (and does) result in the contrary situation where a candidate, who could not win a preferential vote, is elected with a minority of the votes against the wishes of the majority of voters. This is a travesty of democracy.

Unlike preferential voting, first-past-the-post tends to ossify the political system by making it difficult for new political parties to emerge. A vote for an emerging party candidate who cannot win is not just wasted, it increases the chance of an unwanted candidate being elected. A voting system that stifles change breeds discontent and disillusionment in the electorate.

First-past-the-post is also more susceptible to misinformation campaigns because a candidate only needs the biggest minority of votes to win. If I recall correctly, some candidates at the last United Kingdom elections were elected with little over 25% of the vote. Winning margins as low as this are dangerous because they facilitate the election of fringe candidates who lack broad based support.

A country that relies on first-past-the-post voting cannot truly call itself a democracy. Unless a candidate receives an absolute majority of votes, an election outcome cannot be guaranteed to reflect the will of the majority of voters and, in many cases, it will not.

Parliamentary terms

In my opinion, fixed four-year terms for the House of Representatives would be preferable as there is too little calm time in a three-year term for governments to develop and implement policies without being subject to the political exigencies of an approaching election.

Senate elections should continue to be held concurrently with House of Representatives elections. Accordingly, it would be necessary to increase the Senate term to eight years with

half the senators retiring at each election (as at present), or to reduce the term to four years with all senators retiring at each election. An eight-year term seems too long.

Any change will be impossible without broad cross-party support because a referendum would be needed to change the Constitution.

Number of members

Increasing the number of members should be a last resort.

Whether the number of elected representatives needs to be increased in future depends their workload in dealing with constituents. As such, I anticipate that any case for an increase in numbers will apply much more to Members of the House of Representatives than to Senators. At present, I don't think we need more state Senators.

Currently, the Constitution requires that the number of Members of the House of Representatives be, as nearly as practicable, twice the number of Senators. This, together with the constitutional requirement for States to have equal numbers of senators means that adjustments to the number of elected representatives can only be done in large step changes.

Consideration should be given to amending the Constitution so that, if necessary, the number of Members of the House of Representatives can be increased to some higher limit without increasing the number of Senators.